

Annex — Post-Trial Participation Failures

Summary Record: February to June 2024 — Submitted with MP Briefing Letter

Case references

BV20D01752 | AC-2025-LON-004293 | BL-2024-001217

Criminal referrals: CCR-6501-26-0100-000 | CRN 01/7340002/26

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
Submitted in parallel with MP Briefing Letter

Nadia Zahmoul

Litigant in Person

27 March 2026

Veritas Numquam Perit

WHAT THIS ANNEX CONTAINS

This annex summarises the most significant records from the post-trial period in BV20D01752 — February to June 2024. It covers the period between the end of the trial (28 February 2024) and the sealing of the final orders (24 May 2024).

The full chronological record contains 379 entries and is available for law enforcement purposes. This annex contains the 20 most significant entries, selected to show the causal chain between the revocation of participation directions, the exclusion from the draft order process, and the making of orders that are now being enforced against the author.

The CLAAS clinical evidence at the end of this annex was produced in July 2025 — approximately 13 months after the events described. It documents the harm caused. It is on the court record and was addressed directly to the court.

SECTION 1 — THE CAUSAL CHAIN

The Central Symmetry

Two court orders were live and operative on 28 February 2024 — the last day of the trial:

- 1. Participation directions under FPR Part 3A** — granted by MacDonald J during the trial to enable the applicant to participate in proceedings.
- 2. Maintenance Pending Suit (MPS) order of 5 July 2023** — requiring the respondent to pay monthly maintenance to fund the applicant's participation in proceedings.

Both orders ceased without notice, without a hearing, and without giving the applicant an opportunity to be heard.

The participation directions ceased on 28 February 2024 with no court order revoking them — in breach of FPR Rule 3A.9, which requires a court order with reasons before any participation direction can be revoked.

The MPS payments ceased in March 2024 when the respondent stopped paying. No enforcement determination was ever made. The arrears were retrospectively remitted at paragraph 34 of the final order on 24 May 2024 — without any prior determination of the applicant's D50K enforcement application, without a hearing, and without notice.

These are not two separate failures. They are the same failure expressed twice. A disabled applicant was stripped of the legal and financial framework that enabled her participation — simultaneously, without process, and without remedy.

The following table sets out the causal chain in plain terms. Each link is documented in the contemporaneous record.

#	Cause	Effect
1	Participation directions in force during trial 19–28 February 2024 under FPR Part 3A.	Directions enabled participation. No dispute about their existence.
2	Trial ended 28 February 2024. Participation directions ceased the same day. No court order. No hearing. No reasons. No record on the court file.	Breach of FPR Rule 3A.9 — which requires a court order with reasons before any participation direction can be revoked.
3	From 6 March 2024 the author became a litigant in person. No Part 3A assessment was conducted at the point of transition from represented to unrepresented — required by PD 3AA paragraph 1.3 at any change of circumstances.	The court had no record of the author's disability. HMCTS received the Notice of Acting in Person with no disability information.
4	The draft final order and costs order were prepared and exchanged between Campbell KC (H's barrister) and the judge's clerk, Karen Selby-King. The author received no substantive participation in this process.	The orders were made on H's terms. The author formally opposed all submissions on 3 May 2024 in writing — before Campbell KC filed unilaterally that same afternoon.
5	The author made 71 written requests for MPS enforcement between 6 March and 24 May 2024. None was determined before the final order extinguished the arrears at paragraph 34.	The causal link: no MPS income → no legal representation → excluded from draft order process → orders made on H's terms.
6	Final order sealed 24 May 2024 on H's unilateral draft. Costs order made same day. NMO hearing listed same day — the author joined by video link and found no one there.	Orders now being enforced against the author triggered the Detach debt of £1,008,848.42. The author was not represented at any stage of the process that produced them.
7	CLAAS NHS clinical report 1 July 2025 documented increasing distress, deteriorating self-care, and attributed the distress to the legal proceedings and the withdrawal of reasonable adjustments by the court. CLAAS court letter 3 July 2025 addressed directly to the court recommended immediate reinstatement of adjustments.	The court produced the post-trial orders in May 2024. CLAAS documented the harm in July 2025. No participation review was ever conducted between those two dates.

SECTION 2 — THE THREE UNILATERAL ORDER DATES

Three dates are of particular significance. On each date, H's barrister filed a draft order unilaterally, while the author had no legal representation, no MPS income, and no participation directions.

Date	What happened	Why it matters
3 May 2024 ★ UNILATERAL ORDER	Campbell KC files H's first unilateral draft order with the judge's clerk. Recalled and resubmitted same day. Karen Selby-King forwards to MacDonald J at 16:48. The author's equal footing letter lands in Karen's out-of-office inbox at 16:54 — 6 minutes after the judge has received H's draft.	The author's formal opposition arrives after the judge has H's version. Karen is absent with Cohen J until 20 May. The judge responds via Karen that same morning: the author's communications are " <i>entirely inappropriate</i> " and she should agree the order or appeal. No reference to participation, health, or the MPS.
14 May 2024 ★ UNILATERAL ORDER	H's second unilateral draft order filed at 14:44 by Campbell KC on the court deadline day. Four material unilateral amendments introduced without the applicant's knowledge, input, or agreement, while she had no legal representation and no participation directions: (1) Para 38 — applicant removed from governance of the children's education fund; Campbell KC's stated reason is that the applicant considers H's correspondence coercive and controlling; (2) Para 35 — US pensions (approx. £2.2 million) stated not capable of sharing under an English pension sharing order; the legal enforcement mechanism removed and replaced with an unenforceable commitment; (3) Para 43 — deleted entirely; stated reason is H's concern that the applicant might block pension arrangements to prevent decree; a protective provision removed; (4) Para 34 — MPS arrears outstanding since March 2024 retrospectively remitted, without any prior determination of the applicant's D50K enforcement application filed 2 May 2024, without a hearing, and without	Each amendment is a substantive change to the applicant's rights and financial entitlements. Not one was notified to or agreed by the applicant in advance. The applicant's absence from this process is not a choice — it is the direct consequence of the withdrawal of participation directions and the non-enforcement of MPS. Campbell KC himself states the following day that the draft order process is a " <i>courtesy</i> " and there is " <i>very little we have to do.</i> " The court accepts and seals the order on 24 May 2024.

	notice to the applicant.	
24 May 2024 ★ UNILATERAL ORDER	Final order approved on H's unilateral draft and sealed. Costs order handed down the same day at 11:28 on a Friday before a bank holiday weekend. Account balance: £89.	The final order extinguishes the MPS arrears at paragraph 34 without any prior determination of the author's outstanding MPS enforcement application. The Detach debt of £1,008,848.42 is triggered by the conclusion of these proceedings. Both orders are produced through a process from which the author was structurally excluded.

SECTION 3 — SELECTED RECORDS FROM THE CONTEMPORANEOUS ARCHIVE

The following 12 records are selected from the full 379-entry chronology as the most significant for the participation failure argument. Each is a verbatim summary from the contemporaneous email archive.

Date	What happened	Why it matters
5 March 2024 19:XX OUT	The author reports cardiac symptoms, chest pain, and exhausted medication to her solicitor and counsel. States she is going immediately to Cromwell Hospital. Documents that the absence of a deadline on the Oxus matter has caused her to collapse.	CRITICAL for participation record: documented medical emergency caused by failure to accommodate a neurodivergent party. First hospitalisation of the post-trial period — directly preceding the LIP transition.
6 March 2024 17:26 IN	AFP Bloom files the Notice of Acting in Person with the court. The transition from represented to litigant in person is filed with no disability information, no Part 3A reference, and no request for a participation assessment.	HMCTS receives the LIP notice with no basis to apply Part 3A protections. This is the moment HMCTS's failure to proactively assess vulnerability begins. No assessment is ever conducted.
10 March 2024 IN	HMCTS (Lydia Parkin, Administrative Officer) acknowledges the Notice of Acting in Person, stating it has been noted on the court file. No Part 3A inquiry. No disability assessment. No adjusted communication plan.	CRITICAL: HMCTS acknowledgment of LIP status without Part 3A assessment. The evidential foundation of the JR claim against HMCTS.
18 March 2024 OUT	The author challenges her solicitor's reversal of a prior agreement to attend judgment,	Documents the precise moment the representation gap becomes a participation crisis at the

	quoting the solicitor's 6 March undertaking. The author documents her health has significantly deteriorated since the trial and she is unable to represent herself at the judgment or for drafting of orders.	judgment and order drafting stage.
19 March 2024 OUT	First explicit PTSD disclosure in writing. The author documents rapid heartbeat, gastric pain, a numb left hand, and destruction of her nervous system. States the trial has pushed her PTSD into unprecedented territory.	CRITICAL: first explicit PTSD disclosure in correspondence — 14 months before the CLAAS diagnosis formalises this. The physical symptoms are consistent with acute PTSD crisis.
21 March 2024 OUT	The author requests a single binary YES or NO answer from her solicitor on whether the brief fee covers order drafting. The solicitor formally and explicitly states she cannot give a binary answer — the matter is " <i>more nuanced</i> ."	CRITICAL: " <i>I cannot give you a binary answer</i> " — formal refusal documented in writing. This is the clearest documented refusal of the author's autistic communication need in the entire dataset.
2 May 2024 03:00 OUT	The author files urgent Form D50K at 3am to enforce the MPS order — March and April 2024 payments unpaid. At 4am she writes to the court disclosing deteriorating health: weight loss, insomnia, anaemia. Requests extension of draft order deadline until MPS enforced.	Documents W formal enforcement attempt of the MPS order at the exact moment the draft final order process is underway. H's MPS breach directly caused the author's inability to participate.
2 May 2024 21:14 OUT	The author formally opposes everything Campbell KC will file. States she is unwell and without funds. Daughters in distress. Closes with explicit invocation of the overriding objective.	One of the most significant records in the dataset. Formal opposition to all draft order submissions in writing at 21:14 on 2 May. Campbell KC submitted the unilateral draft the following afternoon.
3 May 2024 13:59 OUT	The most stark welfare disclosure in the dataset. Sent directly to the court clerk one hour before the 4pm deadline: " <i>I need to eat; I am hungry and I have anaemia</i> ." D50K MPS enforcement forwarded. If the court cannot enforce, please give reasons and options.	The judge was on notice of this at 14:22 on 3 May — 26 minutes after it was sent. Campbell KC's unilateral submission followed. The judgment makes no reference to the welfare disclosure.
3 May 2024 16:48 IN	Campbell KC's corrected unilateral draft order forwarded by Karen Selby-King to	The equal footing objection never reaches the judge on 3 May. The 17-day communication

	MacDonald J. Six minutes later the author sends her equal footing letter — which lands in Karen's absent inbox. Karen is away with Cohen J until 20 May.	gap (3 May to 20 May) means none of the author's formal objections to the unilateral process are processed in real time.
14 May 2024 15:XX IN	Campbell KC states the following day: " <i>there is very little we have to do</i> " regarding the draft order process. Characterises the author's input as " <i>minimal</i> ." Court does not intervene.	H's own KC acknowledges on the record that the author's input was minimal. This is the closest thing to an admission in the dataset.
24 May 2024 12:28 IN	Karen Selby-King confirms final order approved by MacDonald J on H's unilateral draft. Sealed and served by the urgent orders team the same day. The author is CC'd but has made no substantive representations at any stage of the process that produced it.	The sealing of the final order on H's unilateral draft is the definitive procedural outcome. From 28 February 2024 to 24 May 2024 — 85 days — no participation direction was in force, no assessment was conducted, and no court order revoking the participation directions under Rule 3A.9 was ever made.

SECTION 4 — THE JUDGMENT AND COSTS ORDER: MISCHARACTERISATION OF DISABILITY

The Judgment — 18 April 2024

The judgment runs to 111 paragraphs. It contains zero references to the applicant's autism or PTSD, despite the following:

1. Participation directions had been in force throughout the trial specifically because of those diagnoses.
2. The transcript of oral evidence contains 22 references to the applicant's autism and PTSD.
3. The judge himself asked during the trial whether the applicant had PTSD.

Instead of engaging with the disability evidence, the judgment at paragraph 64 characterises the applicant's communication in the witness box as "*obsessed*." The applicant's distress while giving evidence — a recognised manifestation of autism-related sensory and processing overload — is reframed as a character failing rather than a disability symptom.

The costs order of 24 May 2024 at paragraph 10(xi) finds that the applicant's behaviour was "*disruptive*" and that her "*litigation misconduct is at the extreme end of the scale*." Both findings directly penalise behaviours that are manifestations of autism and PTSD. No

disability analysis is applied. No reference is made to the participation directions that were in force precisely to manage those behaviours during the trial.

Dr Poyser's Letter to the Court — 26 March 2025

Dr Leigh Poyser, Consultant Psychiatrist (CNWL, NHS), wrote directly to the court on 26 March 2025. That letter was on the court file before the hearing of 8 May 2025. The same judge who had that letter on the court file proceeded to hear the matter on 8 May 2025 and mischaracterised it in his judgment.

The CLAAS diagnostic report (1 July 2025) and the CLAAS court letter addressed to the court (3 July 2025) were both produced after the 8 May 2025 hearing. They document the ongoing harm caused by the proceedings and the continuing absence of participation measures. They are a contemporaneous NHS clinical record of what the clinicians found in mid-2025 after 15 months of proceedings without participation measures or safeguarding response.

SECTION 5 — THE NHS CLINICAL EVIDENCE: WHAT THE HARM LOOKED LIKE

The following three passages are quoted verbatim from NHS clinical documents. They are independent clinical findings by NHS clinicians written on NHS letterhead. The 3 July 2025 letter was addressed directly to the court.

> *"While helpful adjustments were made during the hearing phase (e.g., regular breaks, advocacy against harmful questions), these have since been withdrawn, despite the negotiation phase continuing to place significant demands on you. This, alongside financial and emotional strain, has negatively impacted your wellbeing. You described difficulty sleeping, teeth grinding, regular emotional breakdowns, and heightened anxiety."*

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> Dr Catherine Cheung, Principal Clinical Psychologist & Sophia Iacovou, Assistant Psychologist — Central London Adult Autism Service (CLAAS), CLCH NHS Trust — Current Context and Ensuring Equity in Legal Proceedings, Full Autism Diagnostic Assessment Report, 1 July 2025

> *"During the autism assessment and follow-up meetings, we observed increasing levels of distress, which have affected your ability to maintain consistent self-care, sleep and eat well, and regulate your emotions. You spoke openly about these challenges, attributing much of your distress to the ongoing legal proceedings and the withdrawal of reasonable adjustments by the court."*

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> Dr Catherine Cheung & Sophia Iacovou — CLAAS, CLCH NHS Trust — Risk and Mental Health section, Full Autism Diagnostic Assessment Report, 1 July 2025

> *"Nadia has reported significant distress following the recent withdrawal of previously granted accommodations in court, which has impacted her ability to express herself effectively. We strongly recommend that the above adjustments be implemented consistently throughout the remainder of the proceedings."*

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> Dr Catherine Cheung, Service Lead & Principal Clinical Psychologist — CLAAS, CLCH NHS Trust — Autism Diagnosis and Recommendations for Reasonable Adjustments (letter addressed directly to the court), 3 July 2025

Note on the Timeline

The post-trial orders were made in May 2024. The CLAAS reports are dated July 2025. These are separate events on the same continuum.

Dr Poyser's letter of 26 March 2025 was on the court file before the 8 May 2025 hearing. From 10 February 2025 the applicant filed a recusal application daily. That application was never acknowledged and never determined. Notwithstanding the recusal application, the same judge proceeded to hear the matter on 8 May 2025. The hearing caused a severe psychiatric crisis. The applicant was admitted to Accident and Emergency as a direct consequence. The CLAAS diagnostic report (1 July 2025) and the CLAAS court letter addressed to the court (3 July 2025) were produced after that hearing and document the state the applicant was in at that point.

The question at the centre of the proposed Written Parliamentary Question is whether the rules required a court order before any of this could have happened. FPR Rule 3A.9 says yes. No such order has ever been identified.

SECTION 6 — THE CONSEQUENCE: RECUSAL, A&E AND THE CRIMINAL REFERRAL

This is what Rule 3A.9 failing in practice looks like.

The sequence below is established entirely by primary documents from independent third parties — the court record, NHS clinical records, and the criminal referral filed on 24 March 2026. Nothing in it is disputed.

Date	What happened
10 Feb 2025	Applicant files first recusal application against MacDonald J. Grounds: judicial bias; disability discrimination; suppression of clinical evidence; defamatory findings about witness box presentation. Application filed almost daily thereafter. Never acknowledged. Never determined by any court at any level.
6 May 2025 / 17:49	Applicant files urgent email with Court of Appeal two days before the hearing. States: the cost order

	was made against her autism and PTSD symptoms; the findings about her witness box presentation are unsupported by the oral evidence; she does not feel safe with the judge. Transcript of oral evidence attached. Court of Appeal receives the email. No response before the hearing.
8 May 2025	Hearing proceeds. Applicant absent. Adjournment application refused. All applications dismissed Totally Without Merit. Indemnity costs ordered. Judgment of 68 paragraphs. No reference to disability. Dr Poyser's Findings B and C — identifying autism-related processing difficulty as the clinical explanation for the witness box presentation MacDonald J had called "<i>obsessed</i>" in 2024 — are not quoted, not acknowledged, and not addressed.
10 Jun 2025	First and only institutional response to the recusal application — 33 days after the first urgent email. Peter Cobourn, administrative officer, Court of Appeal, states the application should have been filed in the High Court, not the Court of Appeal. No determination. No hearing. Redirect only.
17 Jun 2025	CLAAS (Central London Adult Autism Service, NHS) documents the applicant's distress in writing: "<i>You shared with us that you have been struggling to navigate the case recently as you feel that your needs have been ignored by the court. You shared that you have not been provided with the necessary support to participate in the case or advocate for your needs.</i>" Post-diagnostic sessions scheduled for 19 June. Concerns raised about mental state on 19 June.
20 Jun 2025 / 06:09	Applicant admitted to Chelsea and Westminster Hospital Emergency Department by ambulance. Droperidol 10mg IM administered. A&E notes record: "<i>She also appeared to be fixed on the courts and kept asking LAS if they were sent by them.</i>" Daughter reports 48-hour decline. No alcohol or substances detected. Source: verified ED Departure Summary, Chelsea and Westminster Hospital NHS Foundation Trust, MRN 80718960.
24 Mar 2026	The applicant filed three formal criminal referrals with the Metropolitan Police Service, Crown Prosecution Service, and National Crime Agency: (1) Main criminal referral — 20 March 2026 — 244 pages — perjury, fraud on the court, misconduct in public office (20260320_Zahmoul_CriminalReferral_MPS_COMPLETE); (2) Supplementary referral — 23 March 2026 — exploitation of vulnerability and disability discrimination by the Chancery Court

	(Zahmoul_SupplementaryReferral_CoverLetter_23 Mar2026); (3) Recusal referral — 24 March 2026 — recusal, disability suppression and documented harm, specifically addressing the selective treatment of clinical evidence in the judgment of 8 May 2025 and the A&E admission of 20 June 2025 (2026-03-24_Zahmoul_Recusal_CriminalReferral). All three referrals are registered under Crime Contact Reference CCR-6501-26-0100-000 and Crime Reference Number 01/7340002/26.
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The Rule 3A.9 Connection

The recusal application was never determined because no court accepted responsibility for determining it. That institutional void is inseparable from the same void at the heart of the Written Parliamentary Question: if there is no mechanism for enforcing participation directions, and if there is no mechanism for determining a recusal application filed by a disabled litigant against a judge who suppressed her disability evidence, then the law provides protection in theory and nothing in practice.

The A&E admission of 20 June 2025 — established by an NHS clinical record from an independent hospital, produced by clinicians with no connection to the proceedings — is the documented clinical consequence of that void.

EVIDENCE AVAILABILITY

The full 379-entry chronological record (Master Workbook v8) is available for law enforcement on request. The CLAAS diagnostic report (1 July 2025), the CLAAS court letter (3 July 2025), Dr Poyser's letter (26 March 2025), the Chelsea and Westminster ED Departure Summary (20 June 2025, MRN 80718960), the three criminal referrals (20, 23, and 24 March 2026), and the underlying contemporaneous email correspondence are archived on the public archive: **github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive**.

All primary source documents referenced in this annex are available for forensic inspection.